TAISEKWA EDMORE KONDO

Versus

THE STATE

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 3 AND 11 FEBRUARY 2026

Bail Pending Appeal

Ms T Dube for the applicant
K. M Guveya for the respondent

NDUNA J*:* The applicant was convicted of murder in breach of *section 47 (2) of the Criminal Law (Codification & Reform) Act [Chapter 9:23]*. He was sentenced to a term of imprisonment. He is contesting both conviction and sentence and has since noted and filed his appeal at the Supreme Court. He has returned before me and persuade me to admit him to bail pending the hearing of the application.

The parties have appeared before me and presented their arguments; the state seeks the dismissal of the application on the basis that there are no prospects of success. On the other the accused is convinced that his application has merits and wants to be released on bail whilst he awaits that.

The state's position is that there is no prospects of success. Even if the accused is going to be successful, it is argued, he is likely to be found guilty of Culpable Homicide and would invariably get a prison sentence.

The applicant's first hurdle is that he bears an evidential burden of showing that it is in the interests of justice that he be released on bail. This is because he has been convicted of murder and it requires that an accused persuade the court that it is in the interests of justice to permit his release on bail.

The next difficulty for the applicant is his changed status. The stark reality is that the presumption of innocence no longer operates in his favour. All the rights associated with his pre-trial status have been eliminated as he is now a convict. On conviction other considerations come to the fore. An increased risk of abscondment once a person has been convicted and sentenced to a lengthy term of imprisonment is inevitable. The severity of the sentence imposed will be a decisive factor in the court's exercise of its discretion whether or not to grant bail.

The notional temptation to abscond (which confronts every accused person) becomes a real consideration once the length of the gaol sentence is known. That is known in this case. The accused or applicant simply says he has prospects of success in his appeal. He did not address the question of being found guilty of culpable homicide. He says that he may be totally acquitted on appeal. That is a very serious misdirection on his part. In the case of *S v Smith 2012 (1) SACR 567 (SCA) para 7* the court persuasively held the following:

> 'What the test of reasonable prospects of success postulates is a dispassionate decision, based on the facts and the law, that a court of appeal could reasonably arrive at a conclusion different to that of the trial court. In order to succeed, therefore, the appellant must convince this court on proper grounds that he has prospects of success on appeal and those prospects are not remote, but have a realistic chance of succeeding. More is required to be established than that there is a mere possibility of success, that the case is arguable on appeal or that the case cannot be categorised as hopeless. There must, in other words, be a sound, rational basis for the conclusion that there are prospects of success on appeal."

As was held in *S v Dzawo 1998 (1) ZLR 536* that it is trite that in every case where bail after conviction is sought the onus is on the applicant to show why justice requires that he should be granted bail. In determining an application for bail pending appeal, the court is required to consider the following factors:

(i) likelihood of abscondment;

(ii) prospects of success on appeal;

(iii) right of the applicant to liberty; and

(iv) potential of the delay before the appeal is heard.

Nowadays our appeals are being timeously held. There is no longer the question of the accused/applicant being placed in a stagnant queue whilst he awaits his appeal to heard. The accused has been convicted and fears of his abscondment are now clearly ripe. This is so because even the appellate court is to find him guilty of culpable homicide, he is likely to get an effective prison term.

It is therefore appropriate that accused awaits his appeal whilst serving his term and the application for bail is refused.

Chirorwe and Partners, applicant's legal practitioners
The National Prosecuting Authority, respondent's legal practitioners